



Land Use Department

2040 14th Street • 14th & Spruce Streets • Administrative Services Building, 2nd Floor • Boulder, Colorado 80302 • (303) 441-3930

November 9, 1989

Mr. Gerald Anderson
Southwest Portland Cement Co.
5134 Ute Highway
Lyons, CO 80540

Dear Mr. Anderson:

The purpose of this letter is to clarify the present status of the approval by the Board of County Commissioners of the County of Boulder, State of Colorado of Docket #SU-88-21, Lyons Rubber Recycling Facility, as requested by Freya R. Brier in her letter of November 2, 1989.

The Board of County Commissioners of Boulder County, State of Colorado, APPROVED the request for Special Use Site Specific Development Plan, and Certificate of Designation for Solid Waste Disposal Site, use of tires as fuel for cement manufacture subject to the following conditions:

1. That Southwestern Portland Cement Company obtain its revised Colorado Air Pollution Emission Permit before beginning to accept or burn shredded or whole tires.
2. That, starting on August 1, 1989 and on August 1st of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Departments and the Colorado Department of Health. This report shall indicate on a monthly basis and annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.
3. That RCRA EPA toxicity analyses, and analysis for toxic trace elements, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be reported to the Boulder County Land Use and Health Departments and to the State Health Department.
4. That mosquito and other vector control programs approved by the Boulder County Health Department be instituted as necessary to ensure that the tire storage areas do not increase area vector populations.
5. That Southwestern develop and implement a tire fire coordination program with the Lyons and Hygiene Fire Departments prior to bringing tires to the site. This program should identify the personnel, equipment, materials, and sequence of events that will be used to fight a tire fire. All identified personnel should be trained

in the program. A report detailing the program shall be submitted to the Boulder County Land Use and Health Departments and to the State Health Department.

6. That surface runoff will be diverted away from the shredded and whole tire storage areas.

7. That within three months of closure of the kiln, all remaining tires will be either recycled or properly disposed of.

8. That any required Floodplain Development Permit be approved by Boulder County Public Works Department.

9. That a report be made to the Planning Commission and Board of County Commissioners of the results an inspection of the operation made after one year of operation.

10. That the operation proceed as described in all commitments made of record as a part of this Special Review and other required reviews and permits.

The Commissioners resolution of approval and the subsequently signed Site Specific Development Agreement constitute the required Special Use and Certificate of Designation and the record of this approval by Boulder County actions these matters. Building permits for any new construction required as a part of the approved processing will be required as is normal for all structures.

On September 29, 1989, after discussions with Ms. Brier representing Southwestern and Robert Helmick, Boulder County Zoning Administrator, it was agreed that since all content of the required Site Specific Development Agreement had been reached and that only the mechanics of its transmission to and from the corporate headquarters for execution remained, preliminary testing of tire burning could begin.

With regard to the specific conditions of approval listed above, and contained in the Site Specific Development agreement, Boulder County records indicate the following:

1. Boulder County has not received confirmation from the Colorado Department of Health that Southwestern Portland Cement Company obtain its revised Colorado Air Pollution Emission Permit.

2. No annual report was submitted on August 1, 1989 since operation had not yet begun. It is expected that, starting on August 1, 1990 and on August 1st of each subsequent year, an annual report will be submitted to the Boulder County Land Use and Health Departments and the Colorado Department of Health. This report shall indicate on a monthly basis and annual total, the weight of whole and shredded tires received, the weight of whole tires shredded, the weight of whole and shredded tires utilized in the kiln, and the weight of whole and shredded tires in storage.

3. It is similarly expected that RCRA EPA toxicity analyses, and analysis for toxic trace elements, of the kiln dust shall be performed for each 1,500 tons of tire material utilized during the first three months and for each 3,000 tons of material utilized in the following four months. A minimum of three separate such analyses shall be provided within the first seven months of operation. These results shall be

reported to the Boulder County Land Use and Health Departments and to the State Health Department.

4. It has been our understanding that the mosquito and other vector control programs to be instituted to ensure that the tire storage areas do not increase area vector populations include storage of only shredded tires and/or retention of whole tires for less than the time necessary for mosquito breeding, and that either alternative would be acceptable to the Boulder County Health Department. No direct confirmation of which means is to be used and direct statement of its acceptability has been received.

5. The Land Use Department has received a written tire fire coordination program from Southwestern containing the required identification of personnel, equipment, materials, and sequence of events that will be used to fight a tire fire and personnel training. No comments from nor coordination with the Lyons and Hygiene Fire Departments has been provided, nor has confirmation of submittal and comments from Boulder County Health Department or the State Health Department.

6. It is expected that inspection will show that surface runoff will be diverted away from the shredded and whole tire storage areas.

7. It is expected that within three months of closure of the kiln, all remaining tires will be either recycled or properly disposed of.

8. The Land Use Department has not received confirmation that any required Floodplain Development Permit has been approved by Boulder County Public Works Department. Plans of the proposed use were forwarded to Public Works several months ago at the request of Southwestern.

9. The staff will arrange for an inspection and a report to the Planning Commission and Board of County Commissioners of the results an inspection of the operation made after one year of operation.

10. It is expected that all inspections and reports will confirm that the operation proceed as described in all commitments made of record as a part of this Special Review and other required reviews and permits.

If you have questions or need further information please feel free to contact me.

Sincerely,



Kenneth Ziebarth
Planner, Operational Planning Division

cc: SU-88-21
Freya Brier

